

US Importation, Customs & FDA Enforcement

FDA Import Process Detention and Hearing

Title: Detention of Imported Products and Opportunity for Hearing

Jurisdiction: International

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §801(a); 21 U.S.C. §381(a); FDA Import Process Detention & Hearing

Plain English Summary:

When FDA determines that an imported product **appears to violate FDA laws or regulations**, FDA may detain the shipment and issue a **Notice of Detention and Hearing**. The importer, owner, or consignee is given an opportunity to provide evidence (testimony) showing that the product complies with U.S. requirements; if the violation cannot be overcome, FDA may refuse admission.

For an Ayurvedic startup, this means that a shipment being **detained does not automatically mean it has been finally rejected**. The importer can respond with relevant compliance evidence, documentation, laboratory evidence, or an appropriate reconditioning proposal, depending on the violation.

The Exact Legal/Regulatory Text:

FDA Detention & Hearing:

When products in your shipment violate or appear to violate FDA laws and regulations, FDA may detain your product and issue a Notice of FDA Action with the designation of 'Detained.' This notice is considered the Notice of Detention and Hearing.

The Notice of Detention and Hearing provides a 'respond by' date for the importer, owner, and/or consignee to provide FDA with evidence, also called testimony, to overcome the appearance of a violation.

A hearing is your opportunity to present evidence, or testimony, to overcome the appearance of a violation and to give FDA confidence that the product is in compliance.

Typically, the respond by date is 10 business days but can be up to 20 calendar days to allow for weekends, holidays, and mailing time.

If you are unable to overcome the appearance of a violation, your product will be refused admission and you can work with U.S. Customs and Border Protection (CBP) and FDA to destroy the product or export it from the U.S within 90 days of the refusal.

Underlying statutory authority 21 U.S.C. §381(a):

The statute provides FDA's import-refusal framework where examination or other information indicates that an imported article falls within specified prohibited categories, including articles that are adulterated, misbranded, or otherwise in violation of the FD&C Act.

Keywords/Triggers:

FDA detention, Notice of Detention and Hearing, FDA import hearing, detained Ayurvedic product, imported product violation, FDA testimony, overcome appearance of violation, FDA import enforcement

FDA Import Refusal Destruction or Exportation

Title: Refusal of Admission and Disposition of Imported Products

Jurisdiction: International

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §801(a); 21 U.S.C. §381(a); FDA Import Refusals Refusal of Admission

Plain English Summary:

If FDA makes a final determination that an imported product violates FDA laws or regulations, the shipment may be **refused admission** into the United States. A refused shipment must generally be **destroyed or exported under FDA and U.S. Customs and Border Protection (CBP) supervision within 90 days** of the refusal notice.

For an Ayurvedic startup, this means that a product that cannot overcome an FDA violation at the import stage cannot simply be released into the U.S. market. The importer must arrange for compliant disposition of the refused shipment.

The Exact Legal/Regulatory Text:

21 U.S.C. §381(a) FD&C Act §801(a):

The Secretary of the Treasury shall cause the destruction of any such article refused admission unless such article is exported, under regulations prescribed by

the Secretary of the Treasury, within 90 days of the date of notice of such refusal or within such additional time as may be permitted pursuant to such regulations.

FDA Import Refusals:

A refusal is FDA's final decision that a detained shipment is in violation of FDA laws and regulations.

A refused shipment must either be destroyed or exported under the supervision of Customs and Border Protection (CBP) and FDA within 90 days of the date of the Notice of FDA Action (Refusal Notice).

FDA further states that, following refusal, the importer may **destroy the product under FDA and CBP supervision or export the product under FDA and CBP supervision.**

Keywords/Triggers:

FDA import refusal, refused admission, Ayurvedic product refusal, FDA shipment rejection, destroy refused product, export refused product, 90-day export rule, 21 USC 381

FDA Import Enforcement Actions

Title: FDA Enforcement Actions Against Imported FDA-Regulated Products

Jurisdiction: International

Category: International

Source Citation: Federal Food, Drug, and Cosmetic Act (FD&C Act), §801; 21 U.S.C. §381; FDA Import Program Actions & Enforcement

Plain English Summary:

FDA can take multiple enforcement actions against imported products that violate or appear to violate U.S. requirements. These may include **examination and sampling, detention, refusal of admission, Import Alerts, seizure, civil money penalties, bond actions, debarment, and prosecution**, depending on the circumstances.

For an Ayurvedic business, this means FDA enforcement does not end at the border. FDA states that it has jurisdiction over imported products both **at the time of entry and after products have entered domestic commerce**, so a product that successfully enters the U.S. can still become subject to enforcement later.

The Exact Legal/Regulatory Text:

FDA Actions & Enforcement:

FDA-regulated products imported into the U.S. must comply with FDA laws and regulations. FDA enforces the Federal Food, Drug and Cosmetic Act (FD&C Act) and other related acts.

FDA has jurisdiction over imported products at the time of entry but also after the products have entered domestic commerce.

FDA identifies the following import compliance and enforcement activities:

Examination & Sample Collection

Detention & Hearing

Import Alerts

Import Refusals

FDA also states:

Additionally, imported products and firms found to be in violation of FDA laws and regulations may also be subject to other enforcement actions including but not limited to seizure by Customs and Border Protection (CBP) or FDA, civil money penalties, bond actions, state embargo/stop sale, food importer debarment, and prosecution.

Underlying statutory authority FD&C Act §801 / 21 U.S.C. §381: FDA's import authority includes refusal of articles that appear to be adulterated, misbranded, or otherwise in violation of applicable provisions of the FD&C Act.

Keywords/Triggers:

FDA import enforcement, imported Ayurvedic product violation, FDA seizure, FDA civil penalties, FDA debarment, FDA prosecution, import refusal, FDA post-import enforcement